

11th of February 2026

MR. TONY O. ELUMELU, CFR
CHAIRMAN, UNITED BANK FOR AFRICA (UBA) PLC
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**NINE (9) MILLION NAIRA PETITION FOR CRIMINAL
BREACH OF TRUST, CRIMINAL DIVERSION OF FUNDS
AGAINST MRS FAUSAT MFON ELUMELU**



I, Mr. Adedeji Tony Busari, of No. 3A, Ladipo Latifunwa Street, Lekki Phase 1, Lagos State, a law-abiding Nigerian citizen and businessman dealing in vehicle importation, hereby respectfully submit this criminal petition against Mrs. Fausat Mfon Elumelu for criminal diversion of entrusted funds, breach of trust, false pretence and fraudulent conversion.

BACKGROUND

1. In the year **2023**, I imported **seven (7) vehicles** into Nigeria, namely:
 - Mercedes Benz GL350
 - Lexus RX350
 - Lexus ES350
 - Acura MDX
 - Toyota Sienna
 - Honda Cross Tour
 - Audi Q7
2. Due to financial constraints, I applied for overtime clearance on **22nd July 2024**, allowing the vehicles to remain at the port pending clearance.
3. On **24th November 2024**, I was introduced to **Mrs. Fausat Mfon Elumelu**, who represented herself as a **retired Comptroller of Customs** capable of facilitating release of my vehicles.

PAYMENT AND ENTRUSTMENT

4. Mrs. Elumelu informed me that **two vehicles had already been listed for auction** and demanded payment for clearance.
5. She initially demanded **₦3,000,000 per vehicle**, which after negotiation was reduced to **₦2,000,000 per vehicle**, totaling **₦14,000,000**.
6. On **30th November 2024**, relying on her representations, I transferred **₦14,000,000** to her account:

Bank: UBA Plc

Account Name: Elumelu Fausat Mfon

Account Number: 1012645669

7. The money was strictly entrusted to her for clearing and delivering my seven vehicles.
8. Evidence of the payment into the above account is hereby attached as **EXHIBIT 1**.

FRAUDULENT CONDUCT

8. After months of delay, she only delivered **two vehicles**:
 - Mercedes Benz GL350
 - Acura MDX
9. She secretly diverted the remaining **five vehicles** to unknown persons and locations.

10. She falsely told me she was auctioning the vehicles back to me as consignee, and issued auction papers for only three vehicles: GL350, RX350 and MDX.
11. Investigation later revealed she used my company name to register “**Greatest Lion Venture**”, under which the vehicles were auctioned without my consent.
12. She was subsequently invited to the office of the Commissioner of Police Force Intelligence Department of the Nigerian Police Force, Force Headquarters Annex, Kam Salem House, Monely Street Annex, Lagos.

DIVERSION OF FUNDS (₦9,000,000)

14. At the Commissioner of Police office, she voluntarily agreed to the refund **₦5,000,000** out of the entrusted sum of **₦14,000,000** deposited into her care. **EXHIBIT 2**
15. She thereafter has become unreachable, switched off her phones, and the remaining **₦9,000,000 (Nine Million Naira)** was **criminally diverted, converted and misappropriated** by Mrs. Elumelu for personal use.

ELEMENTS OF THE CRIMINAL ALLEGATIONS AGAINST MRS FAUSAT MFON ELUMELU

Her actions constitute:

- Criminal Breach of Trust
- Criminal Diversion of Entrusted Funds
- Obtaining Money by False Pretence
- Conspiracy
- Fraudulent Conversion
- Conduct Likely to Cause Breach of Peace

Contrary to the **Criminal Code and Penal Laws of Nigeria**.

DEMAND FOR INTERVENTION

17. Mrs. Fausat Mfon Elumelu abused the trust reposed in her, obtained my funds deceitfully, diverted same, and unlawfully disposed of my vehicles.
18. My business has suffered severe financial and reputational damage.
19. My safety has also been threatened due to her conduct.

PRAYERS

I humbly request your office to:

1. Invite, investigate and arrest **Mrs. Fausat Mfon Elumelu**.
2. Recover the **₦9,000,000 criminally diverted**.
3. Trace and recover the remaining vehicles.
4. Prosecute her for criminal breach of trust and diversion.
5. Grant me necessary police protection.

CONCLUSION

This petition is made in good faith and supported by documentary evidence, payment records, account details, and correspondence already supplied.

Yours faithfully,

MR. ADEDEJI TONY BUSARI

8:21

5G



Fausat Elumelu



Can I call you? Ma 3:50 PM ✓✓



Voice call
2 min

4:48 PM



Missed voice call
Tap to call back

5:12 PM



Voice call
2 min

5:22 PM



Voice call
12 min

5:27 PM

Elumelu FM
[1012645669](tel:1012645669)
UBA

6:59 PM

Nov 30, 2024



SterlingPro
Online Bank Receipt

Sat Nov 30 2024
12:11

Transaction successful



Safari.pdf

1 page · 143 KB · pdf

11:23 AM ✓✓



SterlingPro
Online Bank Receipt

Sat Nov 30 2024
12:06

Transaction successful



EXHIBIT 1



1 of 1



Online Bank Receipt

Sat Nov 30 2024
12:06

Transaction successful

NGN 10,000,000.00

Transaction Amount

Sender Name	KONIG GARAGE LTD
Recipient Name	FAUSAT MFON ELUMELU
Recipient Account	1012645669
Recipient Bank	United Bank for Africa
Narration	7 Units

Disclaimer

Your transfer has been processed successfully and will be delivered. However, there may be interruptions or delays from third party services. Sterling Bank is therefore not liable for any failures not within our control. All transactions are also subject to verification and fraud checks. Please call 07006220000 for more information.



1 of 1

Sat Nov 30 2024
12:11

Transaction successful

NGN 4,000,000.00
Transaction Amount

Sender Name	KONIG GARAGE LTD
Recipient Name	FAUSAT MFON ELUMELU
Recipient Account	1012645669
Recipient Bank	United Bank for Africa
Narration	7 Units

Disclaimer

Your transfer has been processed successfully and will be delivered. However, there may be interruptions or delays from third party services. Sterling Bank is therefore not liable for any failures not within our control. All transactions are also subject to verification and fraud checks. Please call 07006220000 for more information.

8:22

5G



Fausat Elumelu



SterlingPro
Online Bank Receipt

Sat Nov 30 2024
12:06

Transaction successful!



Safari.pdf

1 page · 144 KB · pdf

11:24 AM ✓✓

Oooh Tony, I'm just seeing this. The 4m received. Will cnfm the other when its ok.

7:26 PM

Dec 1, 2024

You

Safari.pdf · 1 page



Could have reverted.
I have not received it
Pls confirm
Good morning

6:12 AM

Good morning

I'll check my account now

6:43 AM ✓✓

SterlingPro Sat Nov 30
Online Bank Receipt 2024
12:06

Transaction successful!

NGN 10,000,000.00
Transaction Amount

Sender Name KONIG GARAGE LTD

Sender Account 0096153441

No Of Beneficiary 1



8:26

5G



Fausat Elumelu



get everything sorted.

12:24 PM ✓

Wed, May 28

Good morning Ma

I greet you and God bless
Please any good news

11:52 AM ✓

Good morning Tony,
Thank God two vehicles are out. I did all I needed to do to make sure your job was perfected before I travelled. Three auction allocations were given and I needed funds to complete two more. Your delay in releasing funds(1m) allowed some opportunities to slip by. I've used quite a bit of my money to fast-track those cars for condemnation or else we would have had to wait until the official period of 6 months for it to be condemned by NCS. I incurred other expenses at Abuja to facilitate your job which I'm sure you're aware. As it stands, I'll refund 5 million as soon as possible.
A person who was supposed to continue with the job is on retirement leave and as a result of that i can't continue with this transaction. I suggest you get someone else who will help you on the remaining ones. As you can see, getting an auction allocations is not an overnight thing. Its a long process with a lot of legal implications.
However, subsequently, if you have other jobs and you want me to assist, I may reconsider.
Thanks.
Lets talk later.

3:56 PM



Request for Clarification on Our Agreement

